

[doc. web n. 10026235]
Provision of May 9, 2024
Register of Provisions
n. 288 of May 9, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,
containing the "Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gdpd.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Dr. XX, a professional registered
with the Order of Health Technicians in Medical Radiology
and Technical Health Professions, Rehabilitation, and Prevention of the Province of
Mantova (hereinafter, the "Order"), reported that
he received, on XX, "a notice from the Order [...]"

informing him of the suspension from the Register [, pursuant to Article 4 of Legislative Decree No. 44 of April 1, 2021,] following the failure to comply with the vaccination obligation [against SARS-CoV-2] and [was] also informed that such suspension, for personnel with an employment relationship, would also be communicated to the employer.” Subsequently, on XX, the Order “with a specific email, requested the identifying data of the employer in order to inform the latter of the failure to comply with the vaccination obligation, pursuant to Article 1, paragraph 4, of Legislative Decree No. 172 of November 26, 2021.” The email in question was, however, sent not only to the personal email address of the complainant but also to the email addresses of other professionals, all clearly indicated in the “To” field of the email, making the recipients mutually aware not only of their respective email addresses but also of the lack of possession of the vaccination requirement. In this regard, the Order, represented by its President, with an email dated XX, addressed to the complainant's defense attorney, expressed its regret for what happened, stating that “unfortunately [an employee of the Order] erroneously sent documentation to unauthorized parties.”

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Order, with note dated XX (prot. n. XX), declared, in particular, that: “on XX [...] an email was sent by the Order [...] to the interested professionals requesting communication of the employer [...] pursuant to Article 4, paragraph 5, of Legislative Decree No. 44 of April 1, 2021 [...]. In this communication, a simple request was made without including any personal data. In this email, the email addresses of some professionals interested in communicating their vaccination status to the employer as required by law were reported. It does not emerge from any part of the sent email any specific requests or indications of non-vaccination. It would certainly have been appropriate to use the blind carbon copy feature, a condition that accidentally did not occur. It remains evident that no professional was aware of the reason and there was no attachment”; “the number of professionals to whom the email was sent [is] 40”; it was “a pure material error in sending the email and therefore [there is no] serious fault. It must be considered that in the conditions of the Covid emergency, the management of professionals, in light of the continuous regulatory changes, was not of simple application [...]”. With note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the

alleged

violations of Articles 5, paragraph 1, letter a), and 6 of

Salute, è emerso che la comunicazione di dati personali da parte dell'Ordine riguardava esclusivamente l'adempimento dell'obbligo vaccinale, in conformità con le disposizioni normative vigenti.

4. Conclusioni.

Alla luce di quanto esposto, si ritiene che la comunicazione di dati personali effettuata dall'Ordine non abbia violato i principi di liceità, correttezza e trasparenza, in quanto necessaria per adempiere a un obbligo legale e per garantire la salute pubblica durante la pandemia. Pertanto, non si ravvisano profili di illiceità nel trattamento dei dati in questione.

5. Provvedimenti.

Si dispone che non vi sia luogo a provvedimenti sanzionatori nei confronti dell'Ordine, in considerazione della buona fede dimostrata e della necessità di salvaguardare la salute pubblica. Si raccomanda, tuttavia, di prestare maggiore attenzione nella gestione delle comunicazioni di dati personali in futuro, al fine di evitare possibili fraintendimenti o violazioni delle normative sulla protezione dei dati.

Salutation, the latter had addressed to the national federations the interpretative note of XX (prot. n. XX), concerning "Art. 4 of the decree-law of April 1, 2021, n. 44 converted with amendments by law of May 28, 2021, n. 76. Obligations by the Orders," reiterating and integrating the previous indications provided with note of XX (prot. n. XX).

In particular, in the aforementioned interpretative note of XX, it was specified that the above-mentioned art. 4 was "in the intention of the legislator, an indispensable requirement for the same to be considered suitable to carry out their professional activity, as well as a legitimizing condition for the exercise of the same, in any legal form." This resulted in the consequence that "the activity of the Order provided for by [...] paragraph 7, consists of a mere informational burden, that is, in the communication to the interested party [...] without any merit evaluation, of the suspension resulting ex lege from the act of verification of the ASL, reporting the related annotation in the register, in compliance with the rules on the protection of personal data." Therefore, from the non-compliance with this professional requirement "there can only follow for the healthcare professional [...] the ex lege suspension from the exercise of the healthcare professional activity outright."

The regulatory framework mentioned above was subsequently reformed by the legislator (see decree-law of November 26, 2021, n. 172), introducing a different procedure for verifying the vaccination requirement by the professional Orders through the respective national federations.

In particular, the amended art. 4, paragraph 4, of decree-law 44/2021 provided that "after the terms referred to in paragraph 3, if the professional Order ascertains the failure to comply with the vaccination obligation, including regarding the booster dose, it communicates this to the competent national federations and, for personnel who have an employment relationship, also to the employer."

In preface, it is noted that, following the issuance of decree-law of October 31, 2022, n. 162 and starting from November 1, 2022, the vaccination requirement is no longer provided for healthcare professionals and healthcare operators, the following is highlighted.

During the validity of the aforementioned regulatory framework, the various parties involved (employers, regions, health companies, professional orders), in carrying out the treatments in question (which find their legal basis in the aforementioned regulatory provision) were required to ensure compliance with the principles of data protection (art. 5 of the Regulation), as well as to process the data through authorized personnel properly trained regarding access to data (arts. 4, n. 10, 29, 32, par. 4, of the Regulation), also taking into account the particular sensitivity of the same (art. 9, pars. 2 and 4, as well as art. 4, n. 15, and cons. 35 of the Regulation).

In the system of the Regulation and the Code, these sector-specific norms constituted the legal basis for the processing operations necessary for verifying the existence (or not) of the professional

requirement, uniformly delineating at the national level the scope of processing permitted to each of the institutional parties involved in the verification process (see the numerous provisions of the Guarantor during the emergency period and, in particular, the opinions rendered on the implementing provisions of the aforementioned framework, specifically regarding that rendered with provision of December 13, 2021, n. 430, web doc. n. 9727220, see also the provisions referenced therein). As traditionally stated by the Guarantor, particularly in a work context as delicate as that of passenger air transport, the processing carried out for the purpose of verifying the requirements for access to and carrying out certain professions provided for by specific legal provisions must be conducted in strict compliance with the limits and conditions set forth by that reference framework (see provision of April 27, 2016, n. 194, web doc. n. 5149198).

In this specific case, from the investigation it emerged that the Order, with note of XX (prot. XX), communicated to the complainant that it had ascertained, with resolution n. XX of XX, the lack of possession of the anti SARS-CoV-2 vaccination requirement, with the consequent suspension from the exercise of professional activity.

It is also established that, on XX, the Order sent an email to the complainant and to forty other professionals, in order to ask them to provide the details of their employer. This email was sent by the Order including in clear view the email addresses of all the recipients in the "To" field (instead of in the blind carbon copy "bcc" field), thus allowing each recipient to become aware of the personal email address of all the other recipients.

The sending of the email in question in the aforementioned manner - which, as confirmed by the Order, was carried out as a result of a mere material error - resulted in the disclosure of the email addresses of each of the recipients to the others, that is, to subjects who - even taking into account the definition of "third party," contained in art. 4, par. 1, n. 10, of the Regulation - had no right to know the aforementioned contacts.

The transmission of the message in the described manner also made all interested parties, to whom the aforementioned email was addressed, mutually aware of the lack of possession of the anti SARS-CoV-2 vaccination requirement. In fact, although the email in question contained solely a request to communicate the details of the employer, without explicit references to the underlying motivation for such...

request, it was nonetheless evident and easily deducible, by all recipients, that the communication in question had been sent within the framework of the sector regulations regarding the verification of the vaccination requirement, certainly already well known to the professionals involved during the emergency period, so that the Order could fulfill the obligation to notify the employer of the suspension from the exercise of the profession, as provided for by art. 4, paragraph 4, of Decree-Law 44/2021, in the text in force at the time.

On the other hand, the objection raised by the Order regarding the circumstance that the professionals would have in any case become aware of the suspension due to the lack of possession of the vaccination requirement, as a result of its annotation in the online register, cannot be accepted. It must, in fact, be highlighted that art. 4, paragraph 4, of Decree-Law of April 1, 2021, no. 44, as replaced by art. 1, paragraph 1, letter b), of Decree-Law of November 26, 2021, no. 172, in introducing the procedure for verifying the vaccination requirement by the professional Orders through their respective National Federations, provided that "the act of ascertaining the failure to comply with the vaccination obligation is adopted by the competent territorial Order [...] has a declarative nature, not disciplinary, determines the immediate suspension from the exercise of health professions and is annotated in the relevant Professional Register."

In this regard, the Authority, in providing its opinion regarding the draft decree of the President of the Council of Ministers, to be adopted pursuant to art. 9, paragraph 10, of Decree-Law no. 52/2021, in agreement with the Minister of Health, the Minister for Technological Innovation and Digital Transition, and the Minister of Economy and Finance, to implement the provisions of Decree-Law of November 26, 2021, no. 172 (provision of December 13, 2021, no. 430, web document no. 9727220), had

highlighted that “in order to avoid the dissemination, even online, of particularly sensitive information relating to the professional registered with the Order, such annotation should be made with only the mention of the suspension that has occurred, without further specifications, from which it is possible to trace the violation of the vaccination obligation (for example, through explicit references to the violation of such obligation and/or express references to art. 4 of Decree-Law no. 44/2021 or other similar phrases, such as 'suspensions ex. L.76/21', and/or to the temporary nature – until XX – of the suspension).”

In adopting this indication, art. 1, paragraph 1, letter l), of the Prime Ministerial Decree of December 17, 2021, introduced art. 17-quinquies, paragraph 5, of the Prime Ministerial Decree of June 17, 2021, according to which “the suspension from the exercise of health professions referred to in art. 4, paragraphs 4 and 5, of Decree-Law no. 44 of 2021, is annotated in the register of the territorial Order, as well as, where existing, in the register of the National Federation, without further specifications from which it is possible to deduce the failure to comply with the vaccination obligation by the holder of the health profession.”

Consequently, the annotation of the suspension of professionals in the online register would not have allowed for knowledge of the reason underlying the suspension, namely the lack of possession of the vaccination requirement.

What has accidentally occurred, therefore, constitutes, for data protection profiles, a communication of personal data in the absence of a specific legal basis, as it is not required by the aforementioned sector regulatory framework. While acknowledging that the sending of the email in question was carried out in the aforementioned manner due to a mere human error, the communication of the personal data of the complainant and other interested parties thus occurred in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of art. 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code.

In any case, contrary to what was proposed by the complainant, the correspondence in question did not involve the communication of “data concerning health” (art. 4, paragraph 1, no. 15, of the Regulation), since, although this definition also includes the provision of health services, in this specific case, taking into account the specific contextual and regulatory framework mentioned above, the lack of anti-SARS-CoV-2 vaccination could not, in itself, be correlated to specific reasons for exemption or deferral, related to morbidity situations, past or present, temporary or permanent of the interested parties (cf. provisions of February 22, 2024, no. 110, pending publication; May 17, 2023, no. 194, web document no. 9910245; November 24, 2022, no. 385, web document no. 9839018). Conversely, in fact, if the professionals had submitted to the Order a certification regarding the omission or deferral of vaccination in the event of a proven health risk, in relation to specific documented clinical conditions, certified by the general practitioner, the suspension of the professionals would not have been ordered, according to what is expressly provided for by art. 4, paragraphs 2 and 3, of the aforementioned Decree-Law 44/2021 (see in particular paragraph 3, according to which “if the National-DGC Platform does not show the performance of the anti-SARS-CoV-2 vaccination, even with reference to the booster dose following the primary vaccination cycle, in the manner established in the circular referred to in paragraph 1, the territorially competent professional Order invites the interested party to produce, within five days from receipt of the request, the documentation proving the performance of the vaccination or the certification regarding the omission or deferral of the same pursuant to paragraph 2). or the submission of the vaccination request, to be carried out within a period not exceeding twenty days from the receipt of the invitation, or in any case the absence of the prerequisites for the vaccination obligation referred to in paragraph 1”).

4. Conclusions.

In light of the assessments mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability pursuant to Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Garante

Regulation No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Order is noted, as, although due to a mere human error, by sending the aforementioned email on XX, it made the recipients aware of each other's email addresses and the lack of possession of the vaccination requirement, thereby carrying out a communication of personal data in a manner not compliant with the principles of lawfulness, fairness, and transparency, and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case,” and, in this context, “the Board [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation No. 1/2019). In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

In this regard, it is noted that, although the violation concerned the personal data of a considerable number of individuals, namely forty professionals (cf. Article 83, paragraph 2, letter a), of the Regulation), the conduct is of a negligent nature, given that, as stated by the Order, the email in question was sent with the recipients' addresses visible due to a mere human error (cf. Article 83, paragraph 2, letter b), of the Regulation).

Therefore, it is believed that, in this case, the level of severity of the violation committed by the data controller is low (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, for the purposes of quantifying the sanction, the following mitigating circumstances must be taken into account:

- The Order has offered a good level of cooperation with the Authority during the investigation (cf. Article 83, paragraph 2, letter f), of the Regulation);
- There are no previous relevant violations committed by the data controller, having the same nature as those ascertained in relation to the complaint facts, or previous measures pursuant to Article 58 of the Regulation (cf. Article 83, paragraph 2, letters e) and i), of the Regulation);
- The Order, which is a small public entity with limited organizational resources, operated in the emergency context due to the SARS-CoV-2 pandemic, in which it, like other Administrations, had to make complex decisions in rapid times, in the face of a particularly complex and constantly evolving emergency regulatory framework (moreover, the professional requirement for vaccination is no longer required for healthcare personnel as of November 1, 2022, due to Law Decree No. 162 of October 31,

2022) (cf. Article 83, paragraph 2, letter k), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €3,000.

(three thousand) for the violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive. Considering that the violation involved, in addition to the complainant, a considerable number of interested parties, it is also deemed appropriate to apply the ancillary sanction of publication on the Garante's website of this provision, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Garante Regulation No. 1/2019.

It is finally noted that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Order for violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code, in the terms stated in the reasoning;

ORDERS

the Order of Medical Radiology Technicians and Technical Health Professions, Rehabilitation and Prevention of the Province of Mantova, represented by the legal representative pro tempore, with registered office at Via Imre Nagy, 58 - 46100 Mantova (MN), Tax Code 80029070200, to pay the sum of euro 3,000 (three thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Order, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of euro 3,000 (three thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- the publication of this provision on the Garante's website pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Garante Regulation No. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Garante Regulation No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 9, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei